

## SOLVED PRACTICE WORKBOOK

# Amendment and Basic Structure - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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# Amendment and Basic Structure - Solved Practice Workbook

## BASIC MCQS / REMEDIATION

### Original hard MCQs

**Rotation control:** Correct options run strictly **A -> B -> C -> D**, repeated seven times. Every option has been written to avoid answer-giving language.

#### Original hard MCQ 1

With reference to Article 368, which formulation is the most accurate?

A. Parliament exercises constituent power to amend by addition, variation or repeal, subject to procedure and the basic-structure ceiling. B. Parliament exercises sovereign power once half the States have ratified every amendment. C. Parliament exercises constituent power that is immune from judicial review after Presidential assent. D. Parliament exercises ordinary legislative power and may amend only provisions outside Part III.

**Answer: A. Parliament exercises constituent power to amend by addition, variation or repeal, subject to procedure and the basic-structure ceiling.**

**Explanation:** Article 368(1) expressly uses constituent power and the three forms of amendment. *Kesavananda* and *Minerva Mills* deny immunity or unlimited power.

#### Original hard MCQ 2

In a House with total membership 245, 180 members are present and voting on an Article 368 Bill. What is the minimum number of affirmative votes needed?

A. 120, because only two-thirds present and voting matters. B. 123, because both a majority of total membership and two-thirds present and voting must be crossed. C. 164, because two-thirds of total membership is mandatory. D. 91, because a majority of those present is sufficient if no member abstains.

**Answer: B. 123, because both a majority of total membership and two-thirds present and voting must be crossed.**

**Explanation:** Majority of total membership requires 123; two-thirds of 180 requires 120. Both apply, so the higher operative minimum is 123.

#### Original hard MCQ 3

Which statement correctly describes creation or abolition of a State Legislative Council?

A. Parliament and the State Assembly both use an ordinary majority. B. The Governor creates or abolishes the Council after Parliament approves a resolution. C. The State Assembly first passes the prescribed special-majority resolution; Parliament then enacts an ordinary law outside Article 368. D. It is completed by an Article 368 amendment ratified by half the States.

**Answer: C. The State Assembly first passes the prescribed special-majority resolution; Parliament then enacts an ordinary law outside Article 368.**

**Explanation:** Article 169 is the classic qualification to the phrase "simple-majority amendment": the parliamentary law is ordinary, but the initiating Assembly resolution has a special threshold.

#### Original hard MCQ 4

Which group is entirely within the ratification proviso to Article 368?

A. Article 241, Fundamental Duties and the Second Schedule B. Articles 54, 55 and conditions of the Governor's office C. Chapter IV of Part V, Article 324 and the Tenth Schedule D. Article 279A, Chapter I of Part XI and representation of States in Parliament

**Answer: D. Article 279A, Chapter I of Part XI and representation of States in Parliament.**

**Explanation:** All three are exact proviso subjects. The distractors insert Governor conditions, Article 324, Fundamental Duties, Tenth Schedule or Second Schedule, none of which appears in the proviso as such.

**Original hard MCQ 5**

A Constitution Amendment Bill is introduced in Rajya Sabha and remains pending there without having been passed by Lok Sabha when Lok Sabha is dissolved. Which is correct?

A. It does not lapse merely because of the dissolution, under the narrow rule in Article 107(5). B. It lapses because every amendment Bill requires simultaneous existence of both Houses. C. It must be referred to a joint sitting after the new Lok Sabha is constituted. D. It is deemed passed by Rajya Sabha and may be sent directly to the President.

**Answer: A. It does not lapse merely because of the dissolution, under the narrow rule in Article 107(5).**

**Explanation:** The protected posture is a Bill pending in Rajya Sabha that Lok Sabha has not passed. This must not be generalised into “amendment Bills never lapse”.

**Original hard MCQ 6**

Consider the following statements about introduction of a Constitution Amendment Bill:

1. It may be introduced in either House.
2. It may be introduced by a private member.
3. It needs prior Presidential recommendation.

Which are correct?

A. 2 and 3 only B. 1 and 2 only C. 1, 2 and 3 D. 1 only

**Answer: B. 1 and 2 only.**

**Explanation:** Either House and either a Minister or private member are permitted. Prior Presidential recommendation is not required.

**Original hard MCQ 7**

Which combination is most defensibly classified as constitutionally authorised ordinary-law change outside Article 368?

A. Amending Fundamental Rights; Directive Principles; and the Preamble B. Rewriting the Union Judiciary Chapter; altering Article 279A; changing Article 54 C. Forming a new State under Articles 3-4; changing citizenship law under Article 11; amending the Fifth Schedule through its express mechanism D. Altering Article 368; changing State representation in Parliament; amending List I

**Answer: C. Forming a new State under Articles 3-4; changing citizenship law under Article 11; amending the Fifth Schedule through its express mechanism.**

**Explanation:** These are separately authorised ordinary-law fields. Options D and B require the federal route; D normally requires Article 368 special majority.

**Original hard MCQ 8**

What does the Lok Sabha division on the Constitution (131st Amendment) Bill, 2026 establish?

A. The proposed Article 81 ceiling of 850 became operative after 298 ayes. B. State ratification was judicially held unnecessary for seat allocation. C. A joint sitting may be summoned if the two-thirds limb fails. D. A Bill can satisfy the total-membership-majority limb yet fail the two-thirds-present-and-voting limb.

**Answer: D. A Bill can satisfy the total-membership-majority limb yet fail the two-thirds-present-and-voting limb.**

**Explanation:** 298 exceeded 272 but not 352, two-thirds of 528. The Bill was defeated and created no law or precedent.

**Original hard MCQ 9**

Which proposition belongs to *Shankari Prasad* (1951)?

A. A constitutional amendment under Article 368 was not “law” under Article 13(2), and Fundamental Rights could be amended. B. Fundamental Rights were transcendental and could not be amended prospectively. C. Basic structure

limited constituent power. D. Judicial review and limited amending power were basic features.

**Answer: A. A constitutional amendment under Article 368 was not “law” under Article 13(2), and Fundamental Rights could be amended.**

**Explanation:** B is *Golak Nath*; C is *Kesavananda*; D is *Minerva Mills*.

**Original hard MCQ 10**

The distinctive remedial technique used in *Golak Nath* (1967) was:

A. Reading down Article 368 to require State ratification for all rights amendments B. Prospective overruling, so earlier amendments were not invalidated by the new rule C. Applying basic structure only to future Ninth Schedule laws D. Suspending the judgment until a constitutional convention was held

**Answer: B. Prospective overruling, so earlier amendments were not invalidated by the new rule.**

**Explanation:** *Golak Nath* treated amendments as Article 13 law and protected Fundamental Rights, but prospectively preserved the earlier constitutional position.

**Original hard MCQ 11**

Which statement best captures the *Kesavananda Bharati* settlement?

A. Fundamental Rights cannot be amended under any circumstances. B. Only the Preamble is beyond amendment. C. Every part is amendable, but the basic structure cannot be damaged or destroyed. D. Every amendment requires half-State ratification.

**Answer: C. Every part is amendable, but the basic structure cannot be damaged or destroyed.**

**Explanation:** The judgment rejected both unlimited power and *Golak Nath*'s absolute rights lock.

**Original hard MCQ 12**

Why are Article 368(4) and (5), inserted by the 42nd Amendment, central to *Minerva Mills*?

A. They made the Preamble the only review standard. B. They required ratification by three-fourths of States. C. They transferred amendment power to a constitutional convention. D. They attempted to exclude judicial review and declare the amending power unlimited.

**Answer: D. They attempted to exclude judicial review and declare the amending power unlimited.**

**Explanation:** *Minerva Mills* struck them because limited amending power and judicial review are basic features.

**Original hard MCQ 13**

The principal significance of *Waman Rao* for Ninth Schedule analysis is:

A. It fixed 24 April 1973 as the prospective cut-off for basic-structure scrutiny of later insertions. B. It extended the *Golak Nath* rule to ordinary statutes. C. It held every Ninth Schedule law void. D. It abolished Article 31B prospectively.

**Answer: A. It fixed 24 April 1973 as the prospective cut-off for basic-structure scrutiny of later insertions.**

**Explanation:** The date is that of *Kesavananda*. Reviewability after the cut-off does not mean automatic invalidity.

**Original hard MCQ 14**

Under *I.R. Coelho* (2007), a law placed in the Ninth Schedule after 24 April 1973:

A. is invalid merely because it abridges any Fundamental Right B. is reviewable to determine whether the rights impact damages a basic feature C. receives absolute immunity once the President assents to the amendment D. can be examined only for legislative competence, never for rights impact

**Answer: B. is reviewable to determine whether the rights impact damages a basic feature.**

**Explanation:** *Coelho* uses an impact test linking Part III rights to basic structure; it rejects both blanket immunity and automatic invalidity.

**Original hard MCQ 15**

Which is the technically correct use of *Anjum Kadari* (2024)?

A. The basic-structure doctrine no longer applies to Ninth Schedule amendments. B. Ordinary statutes may be struck solely because a court labels a value “basic”. C. An ordinary statute challenge must trace the defect to competence, Part III or another constitutional provision. D. Every ordinary statute affecting secularism is immune from review.

**Answer: C. An ordinary statute challenge must trace the defect to competence, Part III or another constitutional provision.**

**Explanation:** Basic features can guide interpretation, but an express constitutional hook is required for ordinary legislation.

#### Original hard MCQ 16

Which statement most accurately connects the NJAC judgment with basic structure?

A. It removed Parliament's power to legislate on court administration. B. It created a rule that all judicial statutes violate basic structure. C. It upheld the 99th Amendment because appointments are political questions. D. It invalidated the 99th Amendment framework because judicial independence is a basic feature.

**Answer: D. It invalidated the 99th Amendment framework because judicial independence is a basic feature.**

**Explanation:** The holding is amendment-specific and does not create a free-standing basic-structure attack on every ordinary Act.

#### Original hard MCQ 17

Which pairing is the most accurate?

A. *Indira Nehru Gandhi* - free and fair elections; *Minerva Mills* - Fundamental Rights-Directive Principles harmony B. *Bommai* - mandatory Presidential assent; *Anjum Kadari* - unlimited constituent power C. *Golak Nath* - judicial independence; *Waman Rao* - secularism D. *Sajjan Singh* - Ninth Schedule impact test; *Coelho* - prospective overruling

**Answer: A. Indira Nehru Gandhi - free and fair elections; Minerva Mills - Fundamental Rights-Directive Principles harmony.**

**Explanation:** The remaining pairings transpose unrelated holdings.

#### Original hard MCQ 18

An ordinary State law is alleged to destroy federalism. After *Anjum Kadari*, the court should first ask:

A. Whether half the States ratified the ordinary law B. Whether the State lacked legislative competence or the law violates an express constitutional provision embodying federalism C. Whether the President gave mandatory assent under Article 368 D. Whether federalism appears in any judge's basic-feature list

**Answer: B. Whether the State lacked legislative competence or the law violates an express constitutional provision embodying federalism.**

**Explanation:** The ordinary-law inquiry is text-linked. Article 368 ratification and assent do not apply to a State statute.

#### Original hard MCQ 19

What is the present constitutional status of women's reservation under the 106th Amendment as controlled to 28 August 2026?

A. It never commenced because no notification was issued. B. It became operational when the 131st Amendment Bill was introduced. C. The Act commenced on 16 April 2026, but reservation awaits the Article 334A census-publication and delimitation conditions. D. It became operational immediately on Presidential assent in 2023.

**Answer: C. The Act commenced on 16 April 2026, but reservation awaits the Article 334A census-publication and delimitation conditions.**

**Explanation:** S.O. 1922(E) commenced the Act. Article 334A separately controls operational effect.

#### Original hard MCQ 20

Consider the following about State ratification under Article 368:

1. It is by resolutions of State legislatures.
2. It must be obtained from not less than half the States.

3. The Constitution fixes a six-month deadline.
4. The Constitution expressly permits withdrawal of ratification.

Which option is correct?

A. 1 and 3 only B. 1, 2 and 3 only C. 2 and 4 only D. 1 and 2 only

**Answer: D. 1 and 2 only.**

**Explanation:** The text prescribes neither a time limit nor an express withdrawal rule.

#### Original hard MCQ 21

Which provision was added to the Article 368 ratification proviso in connection with the GST constitutional design?

A. Article 279A B. Article 312 C. Article 280 D. Article 301

**Answer: A. Article 279A.**

**Explanation:** Article 279A establishes the GST Council and is expressly named in the proviso.

#### Original hard MCQ 22

Which constitutional amendment-case sequence is correct?

A. 42nd Amendment -> creation of NJAC -> NJAC judgment B. 39th Amendment -> attempted insulation of specified election disputes -> *Indira Nehru Gandhi* C. 24th Amendment -> Ninth Schedule cut-off -> *Waman Rao* D. 44th Amendment -> insulation of Prime Ministerial election -> *Indira Nehru Gandhi*

**Answer: B. 39th Amendment -> attempted insulation of specified election disputes -> Indira Nehru Gandhi.**

**Explanation:** The distractors deliberately attach correct doctrines to the wrong amendments.

#### Original hard MCQ 23

The central basic-structure holding of *L. Chandra Kumar* is that:

A. tribunal decisions are wholly immune from High Court review B. Parliament cannot create tribunals under Articles 323A or 323B C. judicial review under Articles 32 and 226/227 is an inviolable basic feature D. every tribunal statute must be enacted under Article 368

**Answer: C. judicial review under Articles 32 and 226/227 is an inviolable basic feature.**

**Explanation:** Tribunals may act as courts of first instance, but their decisions remain reviewable by High Courts.

#### Original hard MCQ 24

Which is the safest statement about withdrawal of a State's Article 368 ratification?

A. Withdrawal is never valid after the first State ratifies. B. Withdrawal is always valid until Presidential assent. C. Withdrawal needs approval of the Rajya Sabha. D. The constitutional text is silent, so a categorical rule should not be asserted without authority.

**Answer: D. The constitutional text is silent, so a categorical rule should not be asserted without authority.**

**Explanation:** UPSC answers should identify the ambiguity rather than invent a settled rule.

#### Original hard MCQ 25

Why is "Supreme Court and High Courts" an incomplete shorthand for the Article 368 proviso?

A. The text names Chapter IV of Part V, Chapter V of Part VI and separately Article 241. B. The text includes every tribunal and subordinate court. C. The text excludes the Union Judiciary Chapter. D. The text covers only appointment of judges, not court powers.

**Answer: A. The text names Chapter IV of Part V, Chapter V of Part VI and separately Article 241.**

**Explanation:** Exact Chapter and Article references prevent both omission and overbreadth.

#### Original hard MCQ 26

Which institutional position best distinguishes judicial review from judicial supremacy?

A. Courts may invalidate any policy they regard as unwise. B. Courts enforce identified constitutional limits with reasons, while recognising that policy choice remains with elected institutions within those limits. C. Parliament may

override every judgment by ordinary law. D. Judicial decisions are beyond constitutional criticism.

**Answer: B. Courts enforce identified constitutional limits with reasons, while recognising that policy choice remains with elected institutions within those limits.**

**Explanation:** Review is constitutionally bounded adjudication; supremacy implies an unbounded policy veto.

#### Original hard MCQ 27

Which combination correctly states two central targets of *Minerva Mills*?

- A. Article 31B and the Ninth Schedule as inserted in 1951
- B. Articles 54 and 55 as amended by the 39th Amendment
- C. The expanded Article 31C and Article 368(4)-(5) introduced by the 42nd Amendment
- D. Article 169 and State Legislative Councils

**Answer: C. The expanded Article 31C and Article 368(4)-(5) introduced by the 42nd Amendment.**

**Explanation:** The judgment protected rights-DPSP harmony, limited amending power and judicial review.

#### Original hard MCQ 28

The amendment-versus-replacement distinction most directly asks whether:

- A. the President delayed assent
- B. the Bill was introduced by a Minister
- C. every State ratified the amendment
- D. the Constitution retains its basic identity after the change

**Answer: D. the Constitution retains its basic identity after the change.**

**Explanation:** Article 368 permits alteration of the existing Constitution, not use of a constituted power to abolish the constitutional order that created it.

### Remedial MCQs

These target the highest-frequency errors. Rotation continues **A -> C -> A -> D**, repeated twice.

#### Remedial MCQ 29 - Denominator error

In an Article 368 division, 300 members are present, 270 vote and 30 abstain. For the two-thirds limb, the denominator is:

- A. 270, because abstainers are present but not voting
- B. 300, because all present members count
- C. total membership of the House
- D. only the affirmative votes

**Answer: A. 270, because abstainers are present but not voting.**

**Explanation:** "Present and voting" excludes abstentions. The separate total-membership-majority limb remains unchanged.

#### Remedial MCQ 30 - "Simple majority" overstatement

Which correction is necessary to the sentence "Abolition of a Legislative Council needs only a simple majority"?

- A. Rajya Sabha alone passes the final law.
- B. Parliament's law is ordinary, but the State Assembly's initiating resolution requires its prescribed special majority.
- C. Only the Governor can initiate abolition.
- D. It always needs Article 368 and half-State ratification.

**Answer: B. Parliament's law is ordinary, but the State Assembly's initiating resolution requires its prescribed special majority.**

**Explanation:** The shorthand is incomplete unless the Article 169 precondition is supplied.

#### Remedial MCQ 31 - Ratification shorthand

Which exact constitutional unit, rather than a loose subject label, appears in the Article 368 proviso?

- A. All provisions concerning courts
- B. The whole of Part XI
- C. Chapter I of Part XI
- D. Every Article concerning Centre-State relations

**Answer: C. Chapter I of Part XI.**



**Explanation:** The proviso uses exact Articles, Chapters, Lists and institutional subjects. Overbroad shorthand creates wrong options.

#### Remedial MCQ 32 - Anjum boundary

An ordinary law is challenged only on the statement that it “violates democracy, a basic feature”. The legally sufficient response is:

A. Refer the law for State ratification. B. Strike it down because every basic-feature allegation is self-proving. C. Convert the challenge into an Article 368 proceeding. D. Require the challenger to identify legislative incompetence or violated constitutional provisions embodying democracy.

**Answer: D. Require the challenger to identify legislative incompetence or violated constitutional provisions embodying democracy.**

**Explanation:** *Anjum Kadari* rejects a free-standing ordinary-statute basic-structure test.

#### Remedial MCQ 33 - Ninth Schedule absolutism

Which statement is correct?

A. Post-24 April 1973 Ninth Schedule insertions are reviewable, but invalidity depends on basic-structure impact. B. Every Ninth Schedule law is immune forever. C. Article 31B was repealed by *I.R. Coelho*. D. Every post-1973 Ninth Schedule law is automatically void.

**Answer: A. Post-24 April 1973 Ninth Schedule insertions are reviewable, but invalidity depends on basic-structure impact.**

**Explanation:** Reviewability is an opening of the judicial inquiry, not its predetermined result.

#### Remedial MCQ 34 - Defeated Bill status

The proposed Article 81 ceiling of 850 should be described as:

A. a provision operationalised by the 106th Amendment B. a proposal in the defeated 131st Amendment Bill, 2026 C. the current constitutional maximum D. a binding precedent from the 2026 Lok Sabha division

**Answer: B. a proposal in the defeated 131st Amendment Bill, 2026.**

**Explanation:** The Bill was negated and never became law.

#### Remedial MCQ 35 - Commencement trap

Which sequence correctly represents Article 334A?

A. Introduction of delimitation Bill -> automatic reservation B. Commencement -> Presidential order selecting an election year C. Commencement -> publication of relevant first-post-commencement census figures -> delimitation -> reservation effect D. Assent -> immediate reservation -> later census

**Answer: C. Commencement -> publication of relevant first-post-commencement census figures -> delimitation -> reservation effect.**

**Explanation:** Commencement and operational effect are distinct constitutional stages.

#### Remedial MCQ 36 - State ratification mechanics

State ratification of an Article 368 proviso amendment is:

A. by State legislatures using the Article 368 dual special majority B. by State referendums C. by Governors acting collectively D. by resolutions of not less than half the State legislatures, using ordinary/simple majority

**Answer: D. by resolutions of not less than half the State legislatures, using ordinary/simple majority.**

**Explanation:** The Union special majority and State ratification majority are different.

## PYQS AND ANSWER PRACTICE

### Every verified routed previous-year question

#### PYQ provenance and answer-control ledger

| Year | Stage        | Question | Local source                                          | Key control                                                               |
|------|--------------|----------|-------------------------------------------------------|---------------------------------------------------------------------------|
| 2019 | GS-II Mains  | Q12      | Official local paper and Mains routing ledger         | 15 marks, 250 words                                                       |
| 2025 | GS-II Mains  | Q12      | Official local paper and Mains routing ledger         | 15 marks, 250 words                                                       |
| 2018 | Prelims GS-I | Q5       | Official local question booklet                       | Historical official key unavailable locally; answer inferred and labelled |
| 2019 | Prelims GS-I | Q45      | Official local question booklet                       | Historical official key unavailable locally; answer inferred and labelled |
| 2019 | Prelims GS-I | Q47      | Official local question booklet                       | Historical official key unavailable locally; answer inferred and labelled |
| 2020 | Prelims GS-I | Q13      | Official local question booklet; OCR artefact checked | Historical official key unavailable locally; answer inferred and labelled |
| 2022 | Prelims GS-I | Q13      | Official local question booklet                       | Historical official key unavailable locally; answer inferred and labelled |
| 2023 | Prelims GS-I | Q34      | Official local question booklet                       | Historical official key unavailable locally; answer inferred and labelled |
| 2024 | Prelims GS-I | Q66      | Official local Set-A paper                            | Official local Set-A key directly checked: <b>D</b>                       |
| 2025 | Prelims GS-I | Q58      | Official local Set-A paper                            | Official local Set-A key directly checked: <b>A</b>                       |

### A. Solved Mains PYQs

#### Mains PYQ 1 - 2019 GS-II Q12

**Question:** "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power. **(15 marks, 250 words)**

#### Model solution

Article 368 grants Parliament a broad **constituent power**, but the expression "amendment" does not authorise constitutional destruction. The Supreme Court has therefore treated the power as wide in subject matter and limited in legal effect.

**Evolution of the limit.** *Shankari Prasad* (1951) and *Sajjan Singh* (1965) accepted amendment of Fundamental Rights. *Golak Nath* (1967) reversed course, treating amendments as "law" under Article 13, but used prospective overruling. Parliament responded through the 24th Amendment, expressly affirming constituent power and mandatory Presidential assent.

**Kesavananda settlement.** A 13-judge Bench in *Kesavananda Bharati* (1973), by 7:6, upheld Parliament's capacity to amend every part, including Fundamental Rights, but denied the power to damage or destroy the Constitution's basic structure. Thus breadth of amendment coexists with continuity of constitutional identity.

**Why Parliament cannot expand the limit away.** The 42nd Amendment inserted Article 368(4) and (5), seeking to exclude judicial review and declare the power unlimited. *Minerva Mills* (1980) invalidated these clauses: limited amending power and judicial review are themselves basic features. A limited, Constitution-created power cannot convert itself into an unlimited one.

Applications confirm the rule: *Indira Nehru Gandhi* protected free and fair elections and review; *I.R. Coelho* opened post-1973 Ninth Schedule insertions to impact review; the NJAC judgment protected judicial independence.

**Conclusion:** Parliament may transform constitutional arrangements, but it cannot use Article 368 to abolish constitutional supremacy, democratic competition, rights, federalism or independent review. Amendment ends where replacement begins.

**Why this earns marks:** It answers the precise “expanding its own power” issue, uses the 42nd Amendment-*Minerva Mills* evidence chain, explains rather than merely lists *Kesavananda*, and ends with a direct graded verdict.

**How to improve this answer:** In the exam, compress the opening to one sentence and draw a three-link margin chain - Art. 368(4)-(5) -> *Minerva Mills* -> limited power cannot become unlimited. If space permits, add one sentence distinguishing amendment from constitutional replacement; do not spend words listing every basic feature.

### Mains PYQ 2 - 2025 GS-II Q12

**Question:** Indian Constitution has conferred the amending power on the ordinary legislative institutions with a few procedural hurdles. In view of this statement, examine the procedural and substantive limitations on the amending power of the Parliament to change the Constitution. **(15 marks, 250 words)**

#### Model solution

The Constitution entrusts amendment to the ordinary parliamentary institutions, but they exercise a special **constituent power**, not ordinary legislative power. Article 368 consequently places limits on both **how** the power is exercised and **what** it may accomplish.

#### Procedural limitations

1. An amendment Bill can originate only in either House of Parliament, though it may be introduced by a Minister or private member without prior Presidential recommendation.
2. Each House must separately satisfy a majority of total membership and not less than two-thirds present and voting. There is no joint sitting.
3. Amendments to the federal proviso subjects - including Articles 54, 55, 73, 162, 241 and 279A; the specified Judiciary and legislative-relations Chapters; Seventh Schedule Lists; State representation; and Article 368 - require ratification by not less than half the State legislatures.
4. Ratification must precede presentation to the President, who shall assent after the 24th Amendment.

The defeated 131st Amendment Bill (2026) illustrates the dual test: 298 votes cleared the total-membership limb but fell below two-thirds of 528, or 352.

#### Substantive limitation

*Kesavananda Bharati* (1973) permits amendment of every provision but forbids damage or destruction of the basic structure. *Minerva Mills* made limited amending power and judicial review basic features. *Indira Nehru Gandhi, I.R. Coelho* and the NJAC judgment protected free elections, post-1973 Ninth Schedule review and judicial independence respectively.

The doctrine is criticised as unwritten and counter-majoritarian, yet it reflects constitutional rather than parliamentary supremacy. *Anjum Kadari* (2024) also keeps the test technically confined to amendments, requiring ordinary statutes to be challenged through express constitutional provisions.

**Conclusion:** Parliament's amending power is procedurally entrenched and substantively limited: it can change the Constitution, not destroy its identity.

**Why this earns marks:** The answer explicitly separates procedural from substantive limits, uses the exact proviso groups, adds a verified current arithmetic example, supplies case-linked analysis and qualifies the doctrine's democratic tension.

**How to improve this answer:** Use two visible subheads, **Procedural** and **Substantive**, and reserve the final 35-40 words for evaluation. For a tighter 250-word script, cite only three proviso groups plus “the remaining exact proviso subjects”, while retaining *Kesavananda*, *Minerva Mills* and the 2026 division arithmetic.

## B. Solved Prelims PYQs

### Prelims PYQ 1 - 2018 GS-I Q5

Consider the following statements:

1. The Parliament of India can place a particular law in the Ninth Schedule of the Constitution of India.
2. The validity of a law placed in the Ninth Schedule cannot be examined by any court and no judgement can be made on it.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

**Answer: A. 1 only**

**INFERRED ANSWER - NOT OFFICIALLY VERIFIED.** The official 2018 key is unavailable locally. Confidence: high.

**Explanation:** Parliament places a law in the Ninth Schedule through a constitutional amendment, so Statement 1 is correct. Statement 2 is absolute and false. *Waman Rao* and *I.R. Coelho* establish that post-24 April 1973 insertions are reviewable for basic-structure impact. Reviewability does not mean every inserted law is invalid.

### Prelims PYQ 2 - 2019 GS-I Q45

Consider the following statements:

1. The 44th Amendment to the Constitution of India introduced an Article placing the election of the Prime Minister beyond judicial review.
2. The Supreme Court of India struck down the 99th Amendment to the Constitution of India as being violative of the independence of judiciary.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

**Answer: B. 2 only**

**INFERRED ANSWER - NOT OFFICIALLY VERIFIED.** The official 2019 key is unavailable locally. Confidence: high.

**Explanation:** Statement 1 confuses the 44th Amendment with the 39th Amendment's attempted insulation of specified high-office election disputes. Statement 2 is correct: the NJAC judgment invalidated the 99th Amendment, with judicial independence treated as a basic feature.

### Prelims PYQ 3 - 2019 GS-I Q47

The Ninth Schedule was introduced in the Constitution of India during the prime ministership of:

A. Jawaharlal Nehru B. Lal Bahadur Shastri C. Indira Gandhi D. Morarji Desai

**Answer: A. Jawaharlal Nehru**

**INFERRED ANSWER - NOT OFFICIALLY VERIFIED.** The official 2019 key is unavailable locally. Confidence: high.

**Explanation:** Article 31B and the Ninth Schedule were introduced by the First Amendment Act, 1951, during Jawaharlal Nehru's prime ministership.

### Prelims PYQ 4 - 2020 GS-I Q13

Consider the following statements:

1. The Constitution of India defines its "basic structure" in terms of federalism, secularism, Fundamental Rights and democracy.
2. The Constitution of India provides for judicial review to safeguard the citizens' liberties and to preserve the ideals on which the Constitution is based.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

**Answer: B. 2 only**

**INFERRED ANSWER - NOT OFFICIALLY VERIFIED.** The official 2020 key is unavailable locally. Confidence: high.

**Explanation:** The Constitution does not textually define or enumerate the basic structure; courts developed the doctrine, so Statement 1 is false. Judicial review is constitutionally provided through provisions including Articles 13, 32, 136 and 226, and is itself treated as a basic feature; Statement 2 is correct.

**Prelims PYQ 5 - 2022 GS-I Q13**

Consider the following statements:

1. A bill amending the Constitution requires a prior recommendation of the President of India.
2. When a Constitution Amendment Bill is presented to the President of India, it is obligatory for the President of India to give his/her assent.
3. A Constitution Amendment Bill must be passed by both the Lok Sabha and the Rajya Sabha by a special majority and there is no provision for joint sitting.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

**Answer: B. 2 and 3 only**

**INFERRED ANSWER - NOT OFFICIALLY VERIFIED.** The official 2022 key is unavailable locally. Confidence: high.

**Explanation:** Prior Presidential recommendation is not required, making Statement 1 false. The President shall assent after the 24th Amendment, and both Houses must separately pass the Bill by special majority with no joint sitting; Statements 2 and 3 are correct.

**Prelims PYQ 6 - 2023 GS-I Q34**

In India, which one of the following Constitutional Amendments was widely believed to be enacted to overcome the judicial interpretations of the Fundamental Rights?

A. 1st Amendment B. 42nd Amendment C. 44th Amendment D. 86th Amendment

**Answer: A. 1st Amendment**

**INFERRED ANSWER - NOT OFFICIALLY VERIFIED.** The official 2023 key is unavailable locally. Confidence: high.

**Explanation:** The First Amendment Act, 1951 responded to early Fundamental Rights decisions, including speech and property-related judicial interpretations, by altering Article 19 restrictions and adding Articles 31A and 31B with the Ninth Schedule.

**Prelims PYQ 7 - 2024 GS-I Q66**

As per Article 368 of the Constitution of India, the Parliament may amend any provision of the Constitution by way of:

1. Addition
2. Variation
3. Repeal

Select the correct answer using the code given below:

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

**Answer: D. 1, 2 and 3**

**OFFICIAL LOCAL KEY VERIFIED.** The official 2024 Set-A key directly records Q66 as D.

**Explanation:** Article 368(1) expressly uses all three forms: addition, variation or repeal.

**Prelims PYQ 8 - 2025 GS-I Q58**

Consider the following subjects under the Constitution of India:

I. List I - Union List, in the Seventh Schedule II. Extent of the executive power of a State III. Conditions of the Governor's office

For a constitutional amendment with respect to which of the above is ratification by the Legislatures of not less than one-half of the States required before presenting the Bill to the President of India for assent?

A. I and II only B. II and III only C. I and III only D. I, II and III

**Answer: A. I and II only**

**OFFICIAL LOCAL KEY VERIFIED.** The official 2025 Set-A key directly records Q58 as **A**.

**Explanation:** Any Seventh Schedule List and Article 162, concerning the extent of State executive power, are in the Article 368 proviso. Conditions of the Governor's office are not.

### Original Mains practice with model solutions

#### Original Mains 1 - 10 marks, 150 words

**Question:** Explain how India's constitutional amendment design synthesises flexibility and rigidity. **(10 marks, 150 words)**

#### Model solution

India rejects a single amendment threshold. Its Constitution is flexible where institutional adaptation can safely occur and rigid where constitutional or federal identity is implicated.

First, constitutionally authorised ordinary laws operate outside Article 368: Articles 2-4 permit State reorganisation; Article 11 supports citizenship legislation; Article 169 permits creation or abolition of a Legislative Council after the prescribed State resolution; and the Fifth and Sixth Schedules contain express amendment mechanisms.

Second, most entrenched provisions use Article 368's dual special majority in each House - a majority of total membership and not less than two-thirds present and voting. Failure in either House cannot be cured by joint sitting.

Third, alteration of the federal compact requires the same parliamentary majority plus ratification by not less than half the State legislatures. The exact proviso includes specified executive-power Articles, Judiciary and legislative-relations Chapters, Seventh Schedule Lists, State representation, Article 279A and Article 368.

Finally, *Kesavananda Bharati* adds substantive rigidity: Parliament may amend every part but cannot damage the basic structure.

**Conclusion:** India's graded model enables constitutional evolution while protecting federal consent and constitutional identity.

**Why this earns marks:** It defines the synthesis, uses one example from every route, adds the doctrine as substantive rigidity and avoids an abstract UK-USA comparison.

**How to improve this answer:** For 150 words, convert the three routes into a compact ordinary law -> special majority -> special majority + States flow and use only one example per route. Keep *Kesavananda* as the final substantive-rigidity sentence rather than opening a case chronology.

#### Original Mains 2 - 10 marks, 150 words

**Question:** The role of States in constitutional amendment is significant but narrowly confined. Discuss. **(10 marks, 150 words)**

#### Model solution

States cannot introduce an Article 368 Bill and have no formal ratification role in most amendments. Their constitutional voice is therefore selective rather than co-equal.

The role becomes decisive when an amendment touches the federal proviso: Articles 54, 55, 73, 162, 241 or 279A; Chapter IV of Part V; Chapter V of Part VI; Chapter I of Part XI; any Seventh Schedule List; representation of States in Parliament; or Article 368. After both Houses pass the Bill by the dual special majority, resolutions of not less than half the State legislatures are required before Presidential assent.

Ratification is by a simple majority, not Article 368's special majority. The Constitution provides no time limit and is silent on withdrawal. Union territories do not count as States.



The design is federal because States can block alteration of the constitutional compact, but Parliament-centred because States cannot initiate amendments and only half, not all or three-fourths, need consent.

**Conclusion:** State participation protects the federal core while preserving national amendability; it is asymmetric federalism, not a general State veto.

**Why this earns marks:** It gives the exact proviso, mechanics, limitations and a reasoned federalism verdict within the 10-mark scale.

**How to improve this answer:** Write the proviso as three clusters - named Articles, named Chapters/Lists, and State representation/Article 368 - instead of a long prose list. Explicitly contrast “blocking voice over the federal core” with “no initiation power” to sharpen the federalism assessment.

### Original Mains 3 - 15 marks, 250 words

**Question:** Critically examine the claim that the basic-structure doctrine converts judicial review into judicial supremacy. (15 marks, 250 words)

#### Model solution

The basic-structure doctrine authorises courts to invalidate a constitutional amendment that damages the Constitution's essential identity. Because the limit is judicially inferred rather than expressly listed in Article 368, it creates a serious judicial-supremacy concern.

**Why the criticism has force.** *Kesavananda Bharati* was a 7:6 decision without one exhaustive feature list. Later cases added free and fair elections (*Indira Nehru Gandhi*), limited amending power and rights-DPSP harmony (*Minerva Mills*), federalism and secularism (*S.R. Bommai*), and judicial independence (*NJAC*). An open list gives unelected judges the final word over amendments passed by parliamentary and, sometimes, State super-majorities. An impressionistic test could convert disagreement with institutional design into invalidity.

**Why review remains defensible.** Indian Parliament is not legally sovereign; Article 368 is a Constitution-created power. *Minerva Mills* exposed the contradiction in permitting that limited power to make itself unlimited through Article 368(4) and (5). Democracy also includes fair future elections, opposition rights, federal voice, liberty and independent courts, not only a present electoral mandate. *I.R. Coelho* shows disciplined impact review rather than automatic invalidity.

**Necessary restraint.** Courts should identify the feature's textual and precedential basis, demand actual damage rather than policy inconvenience, and tailor remedies narrowly. *Anjum Kadari* reinforces discipline by refusing a free-standing basic-structure attack on ordinary statutes.

**Conclusion:** The doctrine is judicial review, not judicial supremacy, when used as a reasoned identity safeguard. It risks supremacy when “basic structure” becomes an undefined substitute for constitutional text and institutional restraint.

**Why this earns marks:** It accepts the counter-majoritarian objection, answers it with named cases and constitutional theory, and gives judicially administrable safeguards rather than a one-sided defence.

**How to improve this answer:** Use a two-column criticism/defence mini-table if handwriting allows, then make the restraint test executable: textual basis, settled precedent, actual damage and narrow remedy. Avoid presenting *S.R. Bommai* as a direct amendment-invalidating case.

### Original Mains 4 - 15 marks, 250 words

**Question:** Explain the significance of *Anjum Kadari v. Union of India* (2024) for the scope of the basic-structure doctrine. (15 marks, 250 words)

#### Model solution

*Anjum Kadari*, 2024 INSC 831, supplies an important technical boundary between review of constitutional amendments and review of ordinary legislation.

**The rule.** A statute may be invalidated for lack of legislative competence or for violating Part III or another constitutional provision. It cannot be struck down solely because a court concludes that it violates an undefined basic feature such as democracy, federalism or secularism.

**Doctrinal basis.** Article 368 constituent power alters the constitutional framework; *Kesavananda* therefore subjects it to an identity-preserving basic-structure ceiling. Ordinary legislation operates within that framework. Its validity is tested through legislative entries, Article 13 and other express constitutional limits. The Court drew on the majority reasoning in *Indira Nehru Gandhi*, *State of Karnataka* and *Kuldip Nayar*, while addressing contrary or broader observations in *tribunal* and *NJAC* cases.

**What the judgment does not mean.** It does not immunise ordinary law from secularism, equality, judicial-independence or separation-of-powers review. The challenger must trace the defect to concrete provisions - for example Articles 14, 15 or 25-30 for a secularism claim, or Articles 32 and 226/227 for exclusion of constitutional review. Basic features may still guide interpretation and show the cumulative meaning of those provisions.

**Ninth Schedule qualification.** Post-1973 placement is accomplished through a constitutional amendment, so *Waman Rao* and *I.R. Coelho* basic-structure scrutiny remains available.

**Conclusion:** *Anjum Kadari* narrows rhetoric, not constitutional control. It preserves amendment review while making ordinary-law adjudication text-linked, predictable and consistent with separation of powers.

**Why this earns marks:** It states the holding, explains the amendment-statute distinction, handles apparent case tension, preserves express-provision review and identifies the Ninth Schedule exception.

**How to improve this answer:** Lead with the one-line holding and then apply it to one concrete ordinary-law example through Articles 14/15/25-30 or competence. Keep the Ninth Schedule qualification to two sentences so the answer remains focused on *Anjum Kadari* rather than becoming a general basic-structure essay.

#### Original Mains 5 - 15 marks, 250 words

**Question:** Ninth Schedule protection is neither fictitious nor absolute. Analyse with reference to *Waman Rao* and *I.R. Coelho*. (15 marks, 250 words)

#### Model solution

Article 31B, inserted with the Ninth Schedule by the First Amendment Act, 1951, gives listed laws protection against inconsistency with Part III. The protection is constitutionally significant, but later doctrine prevents it from becoming a device for destroying basic rights.

**Protection architecture.** Parliament places a law in the Ninth Schedule through a constitutional amendment. Article 31B then validates the listed law notwithstanding Part III inconsistency. Article 31A is a related but distinct protection for specified categories of laws.

**Temporal control.** *Waman Rao* (1981) applied the basic-structure doctrine prospectively to constitutional amendments made after **24 April 1973**, the date of *Kesavananda Bharati*. The cut-off protected constitutional finality for earlier insertions while warning Parliament that future immunising amendments were reviewable.

**Impact control.** *I.R. Coelho* (2007) unanimously held that post-cut-off Ninth Schedule laws do not receive blanket immunity. The Court examines whether exclusion of Part III review damages the basic structure. The analytical chain is: identify the affected Fundamental Right -> determine whether its essence forms a basic feature -> assess whether the immunising amendment causes damage or destruction.

**Qualifications.** Reviewability is not automatic invalidity. A minor or constitutionally permissible rights adjustment does not become void merely because insertion occurred after 1973. Conversely, Parliament cannot use Article 31B as a vault for measures annihilating equality, liberty, judicial review or another basic feature.

**Conclusion:** The Ninth Schedule remains a real protective mechanism, but after *Waman Rao* and *Coelho* it operates under constitutional supremacy, not as an exclusion zone from the basic structure.

**Why this earns marks:** It distinguishes Articles 31A/31B, explains both temporal and impact tests, rejects both immunity and automatic-invalidity extremes, and follows a clear analytical sequence.

**How to improve this answer:** Draw the review sequence as insertion date -> affected Part III right -> underlying basic feature -> degree of damage. State expressly that the constitutional amendment inserting the law, not merely the listed statute in isolation, attracts the basic-structure inquiry.

#### Original Mains 6 - 20 marks, 250 words



**Question:** Trace the evolution of Parliament's power to amend Fundamental Rights and evaluate how the Supreme Court constructed a limited constituent power. **(20 marks, 250 words)**

### Model solution

The amendment controversy evolved from a binary question - whether Fundamental Rights were amendable - into an identity question - how far any constitutional provision may be changed.

**Initial breadth.** *Shankari Prasad* (1951) held that a constitutional amendment was not "law" under Article 13(2), permitting amendment of Fundamental Rights. *Sajjan Singh* (1965) reaffirmed this, though separate opinions foreshadowed concern about basic features.

**Rights lock.** *Golak Nath* (1967) treated constitutional amendments as Article 13 law and declared Fundamental Rights beyond abridgement, while using prospective overruling to preserve earlier amendments. This protected rights but risked constitutional immobility.

**Constitutional response.** The 24th Amendment (1971) expressly affirmed Parliament's constituent power, excluded Article 368 amendments from Article 13 and required Presidential assent.

**Identity settlement.** *Kesavananda Bharati* (1973), 13 judges and 7:6, upheld amendment of every part including Fundamental Rights, but prohibited damage or destruction of the basic structure. It replaced an absolute rights lock with a limited constituent power.

**Enforcement and refinement.** *Indira Nehru Gandhi* invalidated election-dispute insulation; the 42nd Amendment's attempt to declare unlimited power was struck in *Minerva Mills*, which protected limited power, judicial review and rights-DPSP harmony. *Waman Rao* and *I.R. Coelho* applied the ceiling to post-1973 Ninth Schedule protection. The NJAC judgment protected judicial independence.

**Evaluation.** The doctrine is unwritten and counter-majoritarian, yet it prevents a temporary super-majority from abolishing the conditions of future democracy. *Anjum Kadari* adds restraint by confining the free-standing doctrine to amendments.

**Conclusion:** The Court did not make Fundamental Rights textually immutable; it made Parliament's constituent power broad, reviewable and incapable of constitutional self-destruction.

**Why this earns marks:** It traces every doctrinal turn, links amendments to cases, explains why the final doctrine differs from *Golak Nath*, and ends with a balanced institutional assessment.

**How to improve this answer:** In a 250-word response, retain only the turning points *Shankari/Sajjan* -> *Golak Nath* -> *24th Amendment* -> *Kesavananda* -> *Minerva Mills*, then use *Coelho* or NJAC as one application. A short timeline saves words for the evaluation demanded by the question.

### Original Mains 7 - 20 marks, 300 words

**Question:** "A constitutional amendment may change the Constitution, but it cannot replace its identity." Discuss the proposition using the amendment procedure, basic-structure doctrine and current examples. **(20 marks, 300 words)**

### Model solution

Article 368 authorises amendment by addition, variation or repeal. The breadth of those verbs permits major institutional change, but the word "amendment" presupposes continuity of the constitutional order.

**Procedural identity safeguards.** India uses graded entrenchment. Some constitutionally authorised matters change through ordinary law; most provisions require a majority of total membership plus two-thirds present and voting in each House; the federal proviso additionally needs ratification by not less than half the State legislatures. The failed 131st Amendment Bill (2026) illustrates procedural rigidity: 298 ayes crossed the 272 total-membership threshold but not the 352 votes required from 528 present and voting. No joint sitting could rescue it.

**Substantive identity safeguard.** *Kesavananda Bharati* (1973) upheld power over every provision but prohibited damage to the basic structure. Justice Khanna's continuity reasoning distinguishes alteration from destruction. *Minerva Mills* then invalidated the 42nd Amendment's attempt to convert a limited power into an unlimited one. Applications protected free and fair elections (*Indira Nehru Gandhi*), judicial review and rights-DPSP harmony (*Minerva Mills*), the post-1973 rights core against Ninth Schedule insulation (*I.R. Coelho*) and judicial independence (NJAC).

**Current precision.** *Anjum Kadari* (2024) prevents identity language from becoming a free-standing attack on ordinary statutes; the violated constitutional provisions must be identified. The 106th Amendment also shows that constitutional design can sequence change: S.O. 1922(E) commenced the Act on 16 April 2026, but Article 334A postpones operational reservation until census-publication and delimitation conditions are met.

**Critical balance.** The doctrine is uncertain and counter-majoritarian because judges infer the protected identity. Yet electoral majority cannot legitimately abolish future elections, federal voice, liberty or independent adjudication. Courts should therefore demand a text-and-precedent foundation and actual damage, not mere policy disagreement.

**Conclusion:** India's Constitution is transformable but not self-cancelling. Procedure protects deliberation and federal consent; basic structure protects continuity of constitutional identity.

**Why this earns marks:** It integrates procedure, doctrine, current verified examples and critique; each example proves a distinct part of the argument and the conclusion directly resolves amendment versus replacement.

**How to improve this answer:** Allocate roughly 70 words to procedure, 120 to doctrine and applications, 60 to current controls/critique, and 30 to the verdict. Label the 131st Bill "defeated proposal" and the 106th Amendment "commenced, not operational" every time so current examples cannot be mistaken for settled implementation.